

Tentative Rulings
January 20, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-17 at jgarcez@sb-court.org. The Court will sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

15. *Duan v. Easy Way Logistics Inc.*, Case No. CIVSB2325601
Motion to Amend Judgment
8/3/26, 9:00 a.m., Dept. S-17

The Court is inclined to **CONTINUE** to allow further attempts at service.

In this case, Plaintiff prevailed before the Labor Commissioner against Defendant Easy Way Logistics, Inc. (Easy Way), as his employer, on wage-and-hour claims. (See Req. Clerk Enter Judgment, Oct. 4, 2023.) Notably, Easy Way is a California corporation. Now, Plaintiff seeks to amend the judgment to include Hongguang Liu under an alter-ego theory. (See *Toho-Towa Co. v. Morgan Creek Prods., Inc.* (2013) 217 Cal. App. 4th 1096, 1107 [discussing narrow circumstances under which corporate form is disregarded].)

No service has yet been effectuated; although, Plaintiff now seeks leave to serve by publication.

16. *Fouse v. Behavior Autism Therapies, LLC*, Case No. CIVSB2428112
Plaintiff's MTC Further Responses to Special Interrogatories, Set One (SROG1)
Plaintiff's MTC Further Responses to Requests for Production, Set One (RFP1)
8/3/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to the SROG1: The Court would **DENY** the motion as untimely.

As to the RFP1: The Court would **GRANT** the motion as to RFP1, numbers 7-9. Defendant Behavioral Autism Therapies (BAT) is **ORDERED** to serve all responsive time and payroll records and contracts, subject to the right to redact employees' names and personal information but maintain an identified, within twenty days of this ruling. Further, Defendant BAT is ordered to pay sanctions in the amount of \$2,460, likewise due within twenty days of this ruling.

Case Summary

This is a putative wage-and-hour class action. Plaintiff alleges that he was an hourly, non-exempt employee of Defendant in California and that Defendant's wage-and-hour practices resulted in violations applicable to the putative class. As such, on September 13, 2024, he filed suit alleging violations relating to (1) overtime; (2) meal periods; (3) rest breaks; (4) minimum wages; (5) final pay; (6) wage statement accuracy; and (7) reimbursements, as well as (8) a cause of action for violation of the unfair competition law (UCL). The UCL claim is underpinned by the purported wage-and-hour violations. Importantly, on January 20, 2026, a First Amended Complaint (FAC) was filed in order to substitute in a new representative Plaintiff.